

English Translation of the Supplied Hindi RTI FAQ

Faithful English translation; headings, questions, answers, numbering, and source-page order are retained.

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Application Before the Public Information Officer / Assistant Public Information Officer

Question 1. What information may be sought?

Answer: "Information" means any material in any form, including records, documents, memoranda, e-mails, opinions, advice, press releases, circulars, orders, logbooks, contracts, reports, papers, samples, models, data-related material, and information relating to any private body to which a public authority may have access under any other law in force at the time.

Question 2. How should an application be made?

Answer: Request for obtaining information - Any person who wishes to obtain any information under this Act shall make a request, in writing or through electronic means, in English or Hindi or in the official language of the area in which the application is being made, together with such fee as may be prescribed -

- (a) to the Central Public Information Officer or the State Public Information Officer, as the case may be, of the concerned public authority;
- (b) to the Central Assistant Public Information Officer or the State Assistant Public Information Officer, as the case may be, specifying the particulars of the information sought: Provided that, where such a request cannot be made in writing, the Central Public Information Officer or the State Public Information Officer, as the case may be, shall give all reasonable assistance orally to the person making the request, so that it may be reduced to writing.

[Specimen application form for the Public Information Officer]

Question 3. What is the time limit for receiving information?

Answer: Subject to the proviso to sub-section (2) of Section 5 or the proviso to sub-section (3) of Section 6, upon receipt of a request under Section 6, the Central Public Information Officer or the State Public Information Officer, as the case may be, shall, as expeditiously as possible and in any case within thirty days of receipt of the request, on payment of such fee as may be prescribed, either provide the information or reject the request for any of the reasons specified in Sections 8 and 9: Provided that, where the information sought concerns the life or liberty of a person, it shall be made available within forty-eight hours of receipt of the request.

Question 4. How much additional fee may be demanded, and for what purpose?

Answer: On submitting an application under Section 6(1), the applicant must pay Rs. 10/- (ten rupees) as an application fee through a treasury challan, cash, non-judicial stamp, e-stamp, money order, demand draft, banker's cheque, or postal order.

Under the Act, the information sought by persons below the poverty line shall be provided free of charge, as follows:-

(One) If the information sought by the applicant relates to his or her life, that information shall be provided in the form in which it has been requested.

(Two) If the information sought is not related to the applicant himself or herself, but the information can be provided free of charge where it consists of 50 photocopy pages (A-4 size) or where the cost of preparing it is Rs. 100/- (one hundred rupees only), then any information shall ordinarily be provided in the same form in which it has been requested, unless doing so would disproportionately divert the resources of the public authority or would be detrimental to the safety or preservation of the record concerned.

(Three) If the information sought exceeds 50 photocopy pages or costs more than Rs. 100/- (one hundred rupees only), then, after recording reasons under Section 7(9), the applicant shall be requested to inspect the records and files at the office.

There is no charge for inspection during the first hour. However, after the first hour, a fee of Rs. 5/- (five rupees) is charged for each hour (or part of an hour).

First Appeal: Application Before the First Appellate Authority

Question 1. When should an application for a first appeal be made?

Answer: If any person does not receive a decision within the time specified in sub-section (1) of Section 7 or clause (a) of sub-section (3) of Section 7, or is aggrieved by the decision of the Public Information Officer, he or she may, within thirty days from the expiry of such period or within thirty days from receipt of such decision, submit an appeal to the senior appellate authority of the Public Information Officer, together with a memorandum of appeal and a fee of Rs. 50/- (if the appeal order is required by post, Rs. 75/-), in cash or with a non-judicial stamp.

The memorandum of appeal shall clearly state the name and address of the appellant, the name and designation of the Public Information Officer, and the order regarding non-provision of information, incomplete or misleading information, payment of fees, or failure to provide information within the prescribed period.

However, such authority may admit the appeal after the expiry of the thirty-day period if it is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time.

[Specimen application form for the Public Information Officer]

Question 2. What is the application fee for a first appeal?

Answer: On submitting a first appeal under Section 19(1), the applicant must deposit Rs. 50/- (fifty rupees) as an application fee through a treasury challan, cash, non-judicial stamp, e-stamp, money order, demand draft, banker's cheque, or postal order.

If a copy of the first appeal order is required by registered post, the applicant shall have to pay an additional Rs. 25/- (twenty-five rupees) as postal charges.

Question 3. What is the time limit for disposal of an appeal?

Answer: The appellate authority of the public authority shall give its decision within thirty days of receipt of the appeal, or, in exceptional cases, within forty-five days of receipt of the appeal.

Second Appeal: Application Before the State Information Commission

Question 1. When should an application for a second appeal be made?

Answer: Against the decision of the First Appellate Authority under sub-section (1), a second appeal may be submitted to the Central Information Commission or the State Information Commission within ninety days from the date on which the decision should have been made or was actually received. However, the Central Information Commission or the State Information Commission, as the case may be, may admit the appeal after the expiry of the ninety-day period if it is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time.

If the decision of the Central Public Information Officer or the State Public Information Officer, against which the appeal has been made, relates to information concerning a person, then the Central Information Commission or the State Information Commission, as the case may be, shall give that person a reasonable opportunity of being heard.

[Specimen application form for the Appellate Authority]

Question 2. What is the application fee for a second appeal?

Answer: On submitting a second appeal under Section 19(1), the applicant may deposit Rs. 100/- (one hundred rupees) as an application fee through a treasury challan, cash, non-judicial stamp, e-stamp, money order, demand draft, banker's cheque, or postal order.

If a copy of the second appeal order is required by registered post, the applicant shall have to pay an additional Rs. 25/- (twenty-five rupees) as postal charges.